

23TRCV03896 23TRCV03896

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-22

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Case Number: 23TRCV03896 Hearing Date: September 22, 2026 Dept: B

Moving Parties: Defendant American Honda

Motor Company

Responding

Party: None

Motion

to Compel Production of Plaintiff's Vehicle for Inspection

The Court considered the moving papers. No opposition was filed.

RULING

The

motion is GRANTED. The Court orders that

plaintiff produce the subject vehicle for inspection within sixty days.

BACKGROUND

On November 21, 2023, plaintiffs Janette Ocegueda fka Janette Castro and Juan A. Ocegueda Jr. filed a complaint against American Honda Motor Company, Inc. for violations of statutory obligations under the Song-Beverly Consumer Warranty Act based on purported defects as to a certified pre-owned 2019 Honda Pilot.

On January 26, 2026, at the FSC, plaintiff requested a trial continuance based on counsel being engaged in another trial. The Court vacated the trial date.

On February 13, 2026, the Court reset the case for trial for September 21, 2026.

On September 11, 2026, at the FSC, the Court continued the trial date to June 21, 2027.

LEGAL AUTHORITY

Under

CCP §2031.010, “(a) Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action.

(b) A

party may demand that any other party produce and permit the party making the demand, or someone acting on the demanding party's behalf, to inspect and to copy a document that is in the possession, custody, or control of the party on whom the demand is made.”

CCP

§2031.040 states: “The party making a demand for inspection, copying, testing, or sampling shall serve a copy of the demand on the party to whom it is directed and on all other parties who have appeared in the action.”

DISCUSSION

Defendant American Honda Motor Company requests that the Court compel plaintiff to produce the subject vehicle for inspection.

Defense counsel states in his declaration on November 20, 2025, defendant served plaintiff with a demand for inspection of property as to the subject vehicle for December 23, 2025, at Spreen Honda Loma Linda. Between November 20 and June 24, 2026, plaintiff did not serve an objection, never raised any issue of unavailability, and never produced the subject vehicle for inspection. On June 24, defendant served another demand

for vehicle inspection for August 5, 2026, at the same location. On August 3, plaintiff served objections, including based on unavailability. That same day, defense counsel sent an email to plaintiff's counsel requesting that plaintiff provide alternative dates. On August 7, defense counsel followed up with plaintiff's counsel seeking a response and proposed dates. As of the filing date of the motion, defense counsel had not received proposed alternative dates. Adam Knighton decl.

There is no opposition.

The Court rules as follows: The Court finds that defendant properly served notices for vehicle inspection. Plaintiff did not serve any objections to the first notice. As to the second notice, although plaintiff objected based on lack of availability, plaintiff has not been diligent or reasonable in providing available dates. Defendant has been attempting to schedule the vehicle inspection since November 2025.

The motion is GRANTED.

ORDER

The motion is GRANTED.

Plaintiff is ordered to produce her vehicle for inspection within sixty days.

Defendant is ordered to give notice of ruling.